

When assessing your application for an approved arrangement, the Department of Agriculture, Fisheries and Forestry considers:

- the nature of the goods that will be managed under the approved arrangement
- any biosecurity risks posed by those goods
- if you are a fit and proper person to carry out biosecurity activities – this includes any debt that your entity owes to the department.

The department can provide you with general advice prior to lodging an application.

Applicants for approved arrangements must be an Australian legal entity. A legal entity is something which has a legal personality. As a legal entity, the law recognises the entity as being able to do things and have things done to it, e.g. a legal entity can enter into contracts, sue and be sued. The law will apply to the legal entity as it would apply to anyone else.

Confirming your legal entity status

As part of entering into an approved arrangement with the department an applicant may be asked to verify their legal entity status in order to determine their legal capacity to enter into a legally binding agreement. This may involve a request for documentation including proof of any name changes.

Applicants must supply an Australian Business Number (ABN) which will be verified on [ABN lookup](#). They are also asked to supply an Australian Company Number (ACN), if registered or licenced by the Australian Securities and Investments Commission (ASIC), which will be verified on the [ASIC registry](#).

Trusts

A trust is not a legal entity. A trust is a relationship between a trustee and the beneficiaries of the trust. It is not a separate legal entity. The trustee is the legal entity which acts on behalf of the trust for the benefit of the beneficiaries. The trustee can be a natural person or a company (corporate trustee). It does not matter if the trust is a discretionary trading trust or fixed trust. E.g. if John Smith as Trustee for the Smith Family Trust, applies for an approved arrangement, to which the Director of Biosecurity approves, John Smith will be the holder of the approved arrangement.

Applications will not be accepted if they are in the name of a trust or trustee. They must be in the name of the natural person or company.

Governments

Legal entities quick reference table

The following table provides a guide to legal entities who can apply for an application for an approved arrangement under the Biosecurity Act 2015.

When individuals execute documents on behalf of the legal entity, they should ensure they are authorised to do so and that they are in a position with adequate knowledge of the entity's current or previous interactions with the department. This is important as they will be required to provide a declaration addressing matters such as convictions, pecuniary penalties, debt and administrative sanctions.

Entities which are legal entities	Documentation required to be submitted with your application to verify legal entity status
	N/A
Co-operatives	N/A
Corporate Commonwealth entities	N/A
Incorporated associations	N/A
Local government entities	N/A
Natural person (sole trader business)	100 points of identification. Please refer to fit2work.com.au for a list of acceptable documents
Partnerships (under the Biosecurity Act only):	Valid and current registration details compliant with relevant state or territory Government legislation for limited or incorporated limited partnerships or copies of formal written partnership agreement for normal partnerships
State government incorporated entity (authority)	N/A
State or territory body politics	N/A
Universities	N/A

You will need to determine roles that are relevant to your business to be able to complete the application, these roles can either be different or the same people.

Role	Responsibility
Declarant	Person with the delegation to submit the application.
Approved Arrangements manager	Person who will be responsible for the approved arrangement. Previously the nominated senior manager.
Approved Arrangements site contact	Person who will be the contact for a particular site. Previously the contact person.

It is the responsibility of all of the above persons to ensure the requirements of the approved arrangement are complied with at all times.

The department will only discuss matters pertaining to an approved arrangement, or an application for an approved arrangement, with the declarant, approved arrangements manager or site contact in accordance with privacy legislation and the departmental privacy policy.

Biosecurity Industry Participants Work, Health and Safety obligations:

Biosecurity Industry Participants are considered Persons Conducting a Business or Undertaking under the Work, Health and Safety Act 2011 (WHS Act) and have a primary duty of care to ensure the health and safety of workers and others at their AA site, so far as is reasonably practical. Department of Agriculture, Fisheries and Forestry staff responsible for performing duties under the Biosecurity Act 2015 (the Act) at AA sites have both rights and responsibilities in relation to their safety while performing their duties. Where safety issues negatively impact the department's ability to perform duties under the Act, grounds may exist for the application of sanctions against the arrangement and biosecurity activities such as inspections being ceased at the site.

The department must decide to either approve or refuse your application within 90 days of receipt of your complete application, and 120 days for complete technical applications. Please note, where your application is not complete, the 90/120-day consideration period does not commence and we will return your application for completing.

If the department cannot make a decision within this time your application will be refused. If you want to continue with your application after it has been refused, you will need to lodge a new application and pay a new application fee.

The consideration period is a legislative requirement, the department is required to make a decision on your application within this timeframe. Requests to reduce or extend a consideration period from an applicant cannot be facilitated.

Requests for further information

If the department requires further information from you to support your application, you will receive a formal notice requesting this information. The request will include the date by which the information must be provided to the department. The date will generally be 60 calendar days from the date of the request. The 90-day consideration period will be extended by the amount of time it takes you to provide the requested information (up to the maximum time stated in the notice).

If you do not supply the information by the date on the request your application may be refused. If you want to continue with your application after it has been refused, you will need to lodge a new application and pay a new application fee.

When entering into a new approved arrangement, where an applicant is either seeking an exemption or is proposing an alternative method to meet a standard approved arrangement class requirement, the applicant may apply for non-standard conditions.

To apply for an approved arrangement with non-standard conditions, please complete an application and ensure you include any information which may help with the assessment of your application, such as:

- details of what you are proposing to do differently to the current class requirements
- any information e.g. site map, technical specifications, details of alternative process etc., that may help with the assessment of your application.

Some training may be required as part of the approval process depending on the class of approved arrangement you are applying for.

More information regarding the co-location of approved arrangement sites is available in the [approved arrangements general policies](#).

The department requires that sites conducting biosecurity containment activities under an approved arrangement must comply with the design and construction aspects of these standards:

- Australian/New Zealand Standards AS/NZS 2982.1:1997 (Laboratory Design and Construction)
- AS/NZS 2243.3:2002 (Safety in Laboratories).

A [departmental approved third-party assessor](#) must be engaged to undertake an assessment against the relevant standards for certain containment sites.

To obtain approval, you will need to:

- complete an application, which includes the [fit and proper person test](#)
- satisfy the conditions as detailed in the [approved arrangement general policies](#) and [applicable class conditions](#)
- meet any other requirements, conditions or directions as set by the department, for example, an import permit. This will depend on the goods you intend to import and what you intend to do with them.

After the completed application and supporting information is submitted to the department, you will be required to pay an application levy if you do not currently hold an approved arrangement with the department. An initial assessment will be conducted to ensure that the applicable requirements have been met.

After the successful completion of the initial assessment, if the proposed arrangement involves the physical handling of goods, a pre-approval audit may be required to assess site facilities and equipment requirements.

Applications are subject to approval by the Director of Biosecurity and will be assessed on their individual merits, with consideration being given to the:

- capability of the applicant to carry out the arrangement
- applicant having any necessary equipment and facilities to carry out the arrangement
- applicant being a fit and proper person

- level of biosecurity risk associated with the proposed arrangement
- capability of the arrangement to be monitored for compliance with the Biosecurity Act 2015.

An entity debt check is conducted as part of the fit and proper person test. An application will not be approved if the entity has overdue debt with the department. Please ensure you check your entities debt status before completing your fit and proper persons questionnaire, you can contact accounts receivable for this information, please phone 1800 647 531 or email [AR helpdesk](#).

If you or your business are seeking approval to enter into an approved arrangement, you will need to complete the appropriate application. You should only lodge an application when you are confident that you meet the department's requirements and are ready for an onsite audit.

Please complete the [online application](#) if you are applying for approved arrangement classes 1-13 or class 19.1 and 19.2.

Note:

- If you are seeking approval to enter into a class (class 1-13) you will need to complete one application for each new site. If you are adding a class to an existing approved arrangement you need to submit an [application to vary a approved arrangement](#).
- If you are seeking approval to enter into a broker class approved arrangement (class 19.1 Non-commodity for containerised cargo clearance or class 19.2 Automatic entry processing for commodities) and your business operates multiple branches you will need to complete one application for each branch ID.
- To enter into a disinsection approved arrangement or if you need to apply for nonstandard conditions please complete the application templates provided below.

The application is designed to work with modern web browsers, at a minimum please use one of the following:

- Google Chrome version 32
- Mozilla Firefox version 27
- Internet Explorer version 10
- default internet browser on most modern mobile devices.

Please contact the department if you experience any technical issues when completing the online application.

You will be required to enter your ABN and approved arrangement manager email address to log into the application. These details can be used to access draft applications. Once submitted, this same combination of ABN and approved arrangement manager email address can be re-used for another new application. If you do not submit the draft application, it will be removed from the system after 90 days.

Disinsection and non-broker with non-standard conditions applications

Applications for disinsection arrangement and arrangements, please complete:

Downloads

[Class 43.1 disinsection treatments: Application for approval of an approved arrangement \(PDF 265 KB\)](#)

[Class 43.1 disinsection treatments: Application for approval of an approved arrangement \(DOCX 61 KB\)](#)

[Approved arrangement classes non-standard conditions: Application for approval of an approved arrangement \(PDF 227 KB\)](#) [Approved arrangement classes non-standard conditions: Application for approval of an approved arrangement \(DOCX 69 KB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

Expiration of approved arrangements. Reapply now.

Current approved arrangement expiry

Note: This includes suspended approved arrangements.

Under section 408 of the Biosecurity Act 2015 approved arrangements are approved for a defined period, currently ten years from the date of approval. Approved arrangements cannot be extended under any circumstances.

The expiry date of an approved arrangement is contained on the latest Notice of Approval or Notice of Variation.

Where an approved arrangement expires, biosecurity activities will no longer be able to be performed without departmental supervision.

How to reapply

To reapply for an approved arrangement, please complete and return the following to the department:

- reapplication form, and
- current site map.

Reapplication forms must be submitted at least 90 days prior to the current approved arrangement's expiry date.

If you do not complete and return the reapplication form at least 90 days prior to the expiry date, the approved arrangement may expire before the assessment can be completed. The department cannot guarantee that any reapplication form lodged within 90 days of the current approved arrangement's expiry will be assessed in time to prevent expiry of the current approved arrangement.

Downloads

[Reapplication for an approved arrangement \(PDF 302 KB\)](#) [Reapplication for an approved arrangement \(DOCX 89 KB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

Significant changes

Significant changes to an existing approved arrangement cannot be accepted on the reapplication form.

A significant change includes:

- change in legal entity
- change in physical address (excluding mobile operators)
- adding or removing a class or biosecurity activities
- varying class conditions.

Information about significant changes can be found on the departments website [Changes and variations to approved arrangements](#).

Assessment process

Applications will be subject to the 90-day consideration period under section 435 of the Biosecurity Act 2015. All applications will be subject to:

- Fit and proper person assessment including a check of overdue debt
- An audit (although this is unlikely, some applications may be subject to an audit where required by the Delegate).

Information about the fit and proper person test can be found on the departments website at [Fit and proper test for approved arrangements applicants](#).

Fees

All applications are subject to the following fees:

- Application assessment fee
- Audit fee – where an audit is required.

Information about the fees can be found on the department's website [Applying for an approved arrangement](#).

What happens if I don't reapply?

Approved arrangements that expire will be subject to the revocation process.

You can choose to voluntarily revoke your approved arrangement prior to the expiry date.

Information about the revocation process can be found at [Revoking approved arrangements](#).

Further information

Please contact the department for more information regarding the expiration of approved arrangements by email aa.canberra@aff.gov.au.

For a complete application the following process will apply:

- an initial assessment of your application and accompanying documentation is conducted
- where an application is complete the department will notify you that the consideration period has commenced
- fees are applied in accordance with the fees and charges available on the [department's website](#)
- fit and proper person status is assessed
- technical assessment is conducted (as required)
- an onsite audit is scheduled and conducted
 - any advisory findings arising from the audit are addressed by the applicant
- requests for information are issued (as required)
- when the full assessment process is complete, a notice of approval or refusal of the application is issued
- once an arrangement is approved the directions are activated and the industry participant can start operating under the arrangement.

For an incomplete application the following process will apply:

- an initial assessment of your application and accompanying documentation is conducted
- where an application is found to be incomplete you will be contacted to provide details for the incomplete information
- your application is then placed on hold pending receipt of the incomplete information
- should an application have been found to have been submitted prematurely (for example, if you are not ready for the onsite audit), you may be advised to withdraw your application and resubmit it when your site is ready
- if the incorrect application has been used, you will be required to complete the correct one
- upon receipt of the additional information required, your application will be re-assessed
- if the application is found to be complete after re-assessment, the department will notify you that the consideration period has commenced and the above complete application process applies
 - where the additional information supplied is still incomplete, further details will be requested and the application put on hold until sufficient information has been provided.

Any time prior to your consideration periods end date, you may request to have your application withdrawn.

Withdrawn applications will not impact on future [Fit and proper person](#) assessments for new applications. If an application is not withdrawn and it is refused by the delegate, future fit and proper person assessments will consider the refusal.

The approved arrangement manager or site contact listed on the application must make the withdrawal request in writing to the [approved arrangements section](#).

Applications will be approved for ten years from the date of approval, unless specified otherwise by the delegate.

Source: <https://www.agriculture.gov.au/biosecurity-trade/import/arrival/arrangements/applying>